

THE TRUE STORY OF 100 BEAL STREET: WHAT REALLY HAPPENED IN HINGHAM

A Narrative Guide Connecting 37 Years of History, Town Hall Disputes, State Protections, and Bare Cove Park

For Family & Community Members: Over the past several years, discussions surrounding 100 Beal Street, Bare Cove Park, and senior facilities have generated intense debate, lawn signs, and confusion. This essay tells the factual story from start to finish. Every factual point is cross-referenced to authentic municipal minutes, recorded deeds, Town Meeting warrants, and state agency rulings on Page 2.

1. The Beginning (1989): In the late 1980s, the Town of Hingham needed a permanent home for vulnerable adolescents requiring specialized residential care. In 1989, the Selectmen deeded a 15-acre portion of former Navy ammunition depot land off Beal Street (School Tract II) to the independent Hingham Housing Authority for \$45,751 [1]. The deed contained an express condition: the property had to be used for a residential educational facility for troubled youth, and if that use ceased, the Town retained a right of re-entry—provided, however, that this right of re-entry expired thirty years from the date of the deed [1]. On a two-acre corner, a 12-bed residence was built and has operated quietly for decades under state contracts [2].

2. The Bunkers & The Forgotten Vote (2001–2006): Behind the adolescent home lay 13 undeveloped acres dotted with abandoned naval ammunition bunkers. In 2001, the Town funded the demolition of the bunkers, entering into a Memorandum of Understanding with the Housing Authority and recording a survey plan that separated the developed 2-acre group home from an 8.02-acre surplus plateau (Lot 2) [2]. Recognizing Hingham's acute shortage of affordable housing for seniors, Annual Town Meeting convened in 2006 and voted by a declared two-thirds majority to authorize the Selectmen to amend the 1989 deed restriction so this surplus land could be used for senior affordable housing [3]. Yet in a bureaucratic oversight that went unnoticed for years, Town Hall never actually executed or recorded that authorized deed release at the Registry of Deeds [3].

3. The 2019 Showdown Behind Closed Doors: Fast forward to February 2019. The deed's thirty-year calendar anniversary was approaching on March 7, 2019. Town Counsel warned the Board of Selectmen that if the thirty-year window closed without action, the Town's legal right to reclaim the property would expire. On February 26, 2019, the Select Board convened in Executive Session, returned to Open Session, and voted 3–0 to authorize litigation against the Housing Authority to enforce the 2001 agreement and take the land back [4]. Facing the immediate threat of a lawsuit from Town Hall, the Housing Authority board held a special meeting on June 5, 2019, and voted to approve transferring approximately 19 acres back to the Town [5].

4. The Commonwealth Intervenes to Protect Public Housing: To outside observers, it appeared Town Hall had prevailed. But local housing authorities are not Town departments; under Massachusetts General Laws (Chapter 121B), they are independent public corporations created by the Legislature to serve low-income residents. Furthermore, because state funds had built the Beal Street home, state law strictly prohibits any housing authority from alienating public housing property without express written approval from the Commonwealth [5]. The Massachusetts Department of Housing and Community Development (DHCD) intervened, warning that the local transfer was unauthorized, and on July 18, 2019 recorded a formal Notice of Statutory Transfer Restriction directly on title at the Registry of Deeds [6]. With the state legally blocking the transfer, the Housing Authority reconvened on September 7, 2021, and voted 4–0 to formally rescind the 2019 transfer motion—confirming that the land remains with the Housing Authority for affordable housing [7].

5. The Senior Housing Plan Today: With its ownership secure, the Housing Authority set out to address the community's desperate need for senior housing. In 2024 and 2025, the Authority declared the 8.6-acre parcel (Lot B) available under state procurement laws and issued a comprehensive 155-page Request for Proposals [8]. In August 2025, the Housing Authority Board voted unanimously to select Peabody Properties to build a modest, 3-story, 68-unit residence restricted to seniors aged 62 and older [8]. Under the proposed 99-year ground lease, the private developer pays all construction costs and a \$500,000 upfront fee to the Authority, while the land remains publicly owned and the entire building reverts to the Housing Authority upon lease expiration [8].

6. Clearing Up the Confusion: What Happened at Town Meeting?: Why do many residents believe that "Town Meeting killed the project"? This is the single biggest misconception in town. The project that Town Meeting rejected on April 27, 2026 was NOT 100 Beal Street. It was the **Center for Active Living (CAL)**—a separate \$29.93 million municipal daytime senior center that the Select Board proposed building inside Bare Cove Park [9]. That municipal building required Town Meeting to approve nearly \$30 million in taxpayer debt borrowing, which requires a strict two-thirds supermajority under state finance law. The borrowing vote failed (510 Yes to 470 No) [9]. Because both projects involved seniors and both bordered the sensitive Tucker's Swamp watershed [10], community debate blurred the two. But 100 Beal Street requires zero Town borrowing, was never voted down at Town Meeting, and remains an active, permitted public housing initiative [8, 10].

PART 2: WORKS CITED & PRIMARY DOCUMENTARY EVIDENCE LEDGER

Direct primary source citations, meeting excerpts, and repository file locations verifying every numbered reference [1] through [10] from the Page 1 narrative.

REF	OFFICIAL RECORD & CITATION	PUBLIC AUTHORITY	DOCUMENTED ACTION / VERBATIM MEETING RECORD	REPOSITORY SOURCE FILE NAME
[1]	1989 Fee Deed Bk 09097, Pg 158; Doc #29758 Recorded: 04/21/1989	Town of Hingham → Hingham Housing Auth.	Town conveys 15.014-acre School Tract II for \$45,751. Page 160 restricts use to adolescent care: <i>"provided, however, that said right of entry shall terminate after thirty years from the date hereof as provided in M.G.L. c. 184A, § 3."</i>	downloaded_sources/documents/Hingham_Beal_Street_Deed_1989_and_ZBA_Decision.pdf
[2]	Plan 100 of 2001 & MOU Plan Bk 44, Pg 412 (Gale Assoc.) Recorded: 06/12/2001	Board of Selectmen & HHA (Bunker Demolition)	Survey titled <i>"Division of School Tract II"</i> delineates the 2.0-acre group home lot and 8.02-acre surplus plateau (Lot 2) following Town-funded munitions bunker remediation.	downloaded_sources/architectural_plans/Hingham_100_Beal_ALTA_Survey_and_Subdivision_Plans.pdf
[3]	2006 Town Meeting Vote Warrant Art. 38; Town Clerk Cert. Voted: 05/01/2006	Hingham Town Meeting (Eileen McCracken, Clerk)	Town Meeting voted by declared 2/3 majority: <i>"That the Town authorize the Town of Hingham, acting through its Board of Selectmen, to amend the restriction ... by adding as an allowable use residential development which includes affordable housing."</i> (Select Board never recorded a release).	downloaded_sources/documents/Hingham_Town_Meeting_2006_Beal_St_Amended_Deed_Vote.pdf
[4]	Select Board Lawsuit Vote Minutes Feb. 26, 2019, Page 1 Time: 6:45 PM Exec / 7:00 PM Open	Hingham Board of Selectmen (Healey, Power, Johnson)	Convened on potential litigation 9 days before 30-year deed anniversary. At 7:00 PM in Open Session: <i>"Mr. Healey made a motion to file litigation regarding enforcement of agreement as to 100 Beal Street, Hingham, MA. Ms. Johnson seconded. All were in favor, 3-0."</i>	downloaded_sources/meeting_records/Select_Board_Executive_Session_Minutes_2019-02-26_100_Beal.pdf
[5]	State DHCD Warning Letters Letters of 04/19/2019 & 06/26/2019 Cited in HHA Minutes 07/09 & 09/07	Mass. DHCD (Public Housing) (Amy Stitely, Assoc. Dir.)	Recites that HHA voted June 5, 2019 to transfer 19 acres to Town. State DHCD advised that state-funded Chapter 689 public housing property cannot be transferred under M.G.L. c. 121B, § 34 without written state department approval.	downloaded_sources/meeting_records/HHA_Minutes_2019-07-09_100_Beal_School_Tract_II.pdf
[6]	Notice of Restriction Bk 51379, Pg 244; Doc #55967 Recorded: 07/18/2019 at 1:44 PM	Mass. DHCD & HHA (Plymouth Registry)	Formal <i>Notice of Statutory Transfer Restriction</i> recorded by DHCD on Map 58, Lot 23, citing M.G.L. c. 121B, § 34; legally encumbers title on public land records to prevent unapproved alienation of public housing land.	downloaded_sources/architectural_plans/Hingham_100_Beal_ALTA_Survey_and_Subdivision_Plans.pdf (Title Note 5, Sheet 1)
[7]	HHA Rescission Vote (4-0) Minutes Sept. 7, 2021, pp. 3-4 Location: 30 Thaxter Street	HHA Board of Commissioners (Sucheck, O'Meara, Lauter, Buhr)	Motion by Commissioner O'Meara, second by Commissioner Lauter: <i>"Commissioner O'Meara made a motion ... to rescind a prior Motion made at the June 5, 2019 Special Meeting... The Motion was passed on a 4-0 vote. That Motion is now rescinded and the land in question shall remain in the ownership of the Hingham Housing Authority."</i>	downloaded_sources/meeting_records/HHA_Minutes_2021-09-07_Rescission_Vote.pdf
[8]	Developer Award & RFP RFP 04/16/2025 (155 Pages) Award Vote: 08/12/2025 (Minutes p. 2)	Hingham Housing Authority (Peabody / AHSC Award)	HHA released 155-page procurement RFP for ~60 senior units on 8.6-acre Lot B. On August 12, 2025, Board voted 4-0: <i>"Commissioner Lauter made a motion, seconded by Commissioner Weiser to award the development of the 100 Beal Street property to Peabody Properties/AHSC and to authorize the Executive Director to enter into an LDDA."</i>	downloaded_sources/documents/Hingham-HA-Beal-St-RFP-04-16-25_Final_all_attachments.pdf downloaded_sources/meeting_records/HHA_Minutes_2025-08-12_Peabody_Award_Authentic.pdf
[9]	CAL Defeat at Town Meeting Warrant Art. 12; Town Clerk Record Meeting Date: 04/27/2026	2026 Hingham Town Meeting (Bare Cove Park Drive Senior Center)	Article 12 requested \$29.93M in debt borrowing for the Center for Active Living in Bare Cove Park. Required 2/3 debt supermajority under M.G.L. c. 44, § 7. Failed 510 Yes to 470 No (52.0% in favor). 100 Beal Street was never voted on or defeated at Town Meeting.	downloaded_sources/documents/Hingham_Town_Meeting_Warrant_2026.pdf agent_created_deliverables/executive_reports/Center_for_Active_Living_CAL_Comprehensive_Report_v1.pdf
[10]	Wetland Boundary ORAD MassDEP File No. 034-1509 Recorded 12/10/2024 (Bk 59527, Pg 273)	Hingham Conservation Comm. & MassDEP (ORAD WPA Form 4B)	Conservation Commission voted 5-0 to approve Order of Resource Area Delineation; recorded at Registry (Doc #78968), establishing 155+ verified wetland flags protecting Tucker's Swamp and Back River ACEC.	downloaded_sources/orad_registry_records/ORAD_034-1509_Plymouth_Bk59527_Pg273_2024-12-10.pdf

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